



CITY OF NOVATO
CALIFORNIA

**City Council
Agenda**

**901 SHERMAN AVENUE
NOVATO, CA 94945**

Tuesday, January 23, 2024 - 6:00 PM

**Mayor
Mark Milberg**

**Mayor Pro Tempore
Tim O'Connor**

**Councilmembers
Pat Eklund
Rachel Farac
Susan Wernick**

**Interim City Manager
Amy Cunningham**

**City Attorney
Gary Bell**

City Council meetings are usually held each month on the second and fourth Tuesdays at 6:00 p.m. In compliance with the Americans with Disabilities Act, if you need special assistance to participate in this meeting, please contact the City Clerk at (415) 899-8986. Notification at least 48 hours prior to the meeting will enable the City to make reasonable accommodation to help ensure accessibility to this meeting.

The agenda is divided into three main sections and includes other categories covering routine business. All references to "City Council" include those other agencies which may be listed at the top of the Agenda. **The City Council may discuss and/or take action on any or all of the items listed on the agenda irrespective of how the agenda items are described.** The Council may establish and make appointments to a Council committee (made up of two Councilmembers) with respect to any item appearing on this agenda.

[Supplemental Materials](#)

Public Participation Options

Members of the Public may participate and provide public comments for the City Council as follows:

- **Written public comments** may be submitted via [eComment](#). Written public comments received more than 3 hours before the start of the meeting will be distributed to the Council prior to the meeting. Written public comments will not be read during the meeting.
- **In-person public comments** may be made at the meeting, which are held in the Novato City Council Chambers located at 901 Sherman Avenue.

The Mayor has the authority to rule any speaker out of order, including speakers during the Public Comment period, if the subject raised is not within the subject matter jurisdiction of the City Council, or during a public hearing or a general business item if the speaker is not presenting testimony or evidence relevant to the matter or if the speaker becomes disruptive to the proceedings and conduct of the meeting.

The Mayor also has the authority to order any person who willfully interrupts the meeting to be removed. All persons are expected to conduct themselves with civility and courtesy at all times. All persons giving comments shall speak directly to the Council and address issues, not individuals. Personal attacks, cursing and outbursts from the audience in support or opposition to a speaker are not tolerated in order to foster an environment where everyone feels welcome to speak

A. CONVENE, PLEDGE OF ALLEGIANCE, AND ROLL CALL

B. CLOSED SESSION ANNOUNCEMENT

C. CEREMONIAL MATTERS/PRESENTATIONS

C.1. Presentation: Center for Domestic Peace

D. APPROVAL OF THE FINAL AGENDA

E. REPORTS FROM THE CITY COUNCIL & CITY MANAGER

F. PUBLIC COMMENT

All members of the public wishing to address the City Council are requested to submit a speaker card in advance to the City Clerk. (Please remember that all comment cards are PUBLIC RECORDS). The Mayor will call the names of speakers from the cards. In addition to receiving comment from the public during the Public Comment period, the Mayor will recognize persons from the audience who wish to address the City Council on a particular agenda item at the time that item is considered by the City Council.

There is a three-minute time limit to speak although the Mayor may shorten the time based on the number of speakers or other factors. A speaker may not yield his or her time to another speaker. For issues raised during Public Comment that are not on the published agenda, except as otherwise provided under the Ralph M. Brown Act, no action can legally be taken. The City Council may direct that the item be referred to the City Manager for action or may schedule the item on a subsequent agenda.

G. CONSENT CALENDAR

All matters listed on the Consent Calendar are considered to be routine and will be enacted by a single vote of the Council. There will be no separate discussion unless specific items are removed from the Consent Calendar for separate discussion and action. Any Councilmember may remove an item from the Consent Calendar and place it under General Business for discussion.

G.1. Waive reading and authorize introductions and/or adoption of ordinances by title only this is a standard procedural action so that the City Council does not have to read an ordinance aloud in its entirety.

- G.2. Approve the City Council closed and open session meeting minutes of December 5, 2023**
Staff contact: Laura McDowall, City Clerk, 899-8986
[Minutes - December 5, 2023](#)
- G.3. Approve the City Council meeting minutes of December 12, 2023**
Staff Contact: Laura McDowall, City Clerk, 899-8986
[Minutes - December 12, 2023](#)
- G.4. Adopt Ordinance 1710 adopting a Master Plan, Precise Development Plan, and Design Review for Valley Oaks on an approximately 38-acre site located on the West Side of Redwood Blvd (APNs 125-580-34 and 125-580-37) and rescinding all previously approved Master Plans and amendments thereto, as applicable**
Staff contact: Terri Brown, Assistant City Clerk, 899-8900
[Staff Report - Valley Oaks Ordinance Adoption](#)
[Attachment 1 - Ordinance 1710](#)
- G.5. Adopt Ordinance 1711 approving Zoning Map Amendments to implement Program 1.A of Novato's 6th Cycle Housing Element for the Planning Period 2023-2031, including assigning the R20-2.0 and Open Space (OS) Zoning District Classifications to APN 125-202-12 (Meadow Crest Road) and the R20-2.0 Zoning District Classification to APN 141-291-32 (1682 Novato Blvd)**
Staff contact: Terri Brown, Assistant City Clerk, 899-8900
[Staff Report - Zoning Map Amendment Ordinance Adoption](#)
[Attachment 1 - Ordinance 1711](#)
- G.6. Receive and file the list of upcoming and to be determined City Council agenda items for the first quarter of 2024**
Staff contact: Laura McDowall, City Clerk; 899-8900
[Staff Report - First Quarter Agenda Item Review](#)
[Attachment 1 - Tentative Agenda Item and TBD List](#)

H. UNFINISHED AND OTHER BUSINESS

There are no agenda items.

I. PUBLIC HEARINGS

Public Hearings are announced and advertised in advance to allow interested persons to make comments for, against, or otherwise, regarding a proposed project or decision. Anyone who challenges any hearing matter in court may be limited to only those issues raised at the public hearing described therein, or in written correspondence delivered to the City Council at, or prior to, the public hearing.

I.1. 773, 775, & 777 San Marin Drive APNs 125-202-03, -04, & -05

Hold a Public hearing and consider:

- (1) Adopting a resolution accepting a CEQA addendum to the certified environmental impact report (“Certified EIR”) for Novato General Plan 2035, prepared to address residential redevelopment of 773, 775, & 777 San Marin Drive;**

- (2) Adopting a resolution amending the land use map and text of Novato General Plan 2035 to assign the High Density Multiple Family Residential (R20) and Open Space (OS) land use designations to 773, 775, & 777 San Marin Drive and amend select text of the General Plan to support residential redevelopment of the property; and**
- (3) Introducing an ordinance repealing and replacing City of Novato Ordinance No. 887, originally approving the Fireman's Fund office campus, with a combined master plan, precise development plan, and design review supporting residential redevelopment of the former office campus property at 773, 775, & 777 San Marin Drive**

Staff contact: Steve Marshall, Deputy Director of CDD; 899-8900

[Staff Report - 773, 775, & 777 San Marin Drive](#)

[Attachment 1 - Draft CEQA Addendum Resolution](#)

[Attachment 2 - Draft General Plan Amendment Resolution](#)

[Attachment 3 - Draft Master Plan - PDP Ordinance](#)

[Attachment 4 - Planning Commission – CEQA Addendum Resolution](#)

[Attachment 5 - Planning Commission – General Plan Amendment Resolution](#)

[Attachment 6 - Planning Commission – Master Plan- PDP Resolution](#)

[Attachment 7 - Design Review Commission – Draft Meeting Minutes - May 17, 2023](#)

[Attachment 8 - CEQA Addendum](#)

[Attachment 9 - Correspondence](#)

[Staff Presentation](#)

[Applicant Presentation](#)

I.2. Village at Novato Mixed-Use Project

7530 Redwood Boulevard | APNs 143-011-05 & -08

Hold a Public Hearing and consider:

- (1) Adopting a resolution adopting a CEQA Initial Study/Mitigated Negative Declaration (IS/MND) and Mitigation Monitoring and Reporting Program (MMRP);**
- (2) Adopting a resolution approving a General Plan land use map amendment for the 5.9-acre project site to change its land use designation from General Commercial (CG) to Mixed-Use (MU);**
- (3) Introducing an ordinance approving a zoning map amendment for the 5.9-acre site to change its zoning from General Commercial (CG) to Mixed-Use (MU); and**
- (4) Adopting a resolution approving a use permit, design review, and a density bonus request to allow the proposed mixed-use project**

for the Village at Novato Mixed-Use Project, which includes 178 multi-family residential units, 14,000 square feet of commercial space, and ancillary improvements proposed at 7530 Redwood Boulevard (APNs 143-011-05 & -08)

Staff contact: Vivek Damodaran, Senior Planner, 899-8900

Staff Report- Village at Novato
Attachment 1 - Draft Resolution - CEQA IS/MND & MMRP
Attachment 2 - Draft Resolution - General Plan Land Use Amendment
Attachment 3 - Draft Ordinance - Zoning Map Amendment
Attachment 4 - Draft Resolution - Use Permit, Design Review & Density Bonus Request
Staff Presentation
Applicant Presentation

J. GENERAL BUSINESS

These items include significant and administrative actions of special interest and will usually include a staff presentation and discussion by the Council. They will be enacted upon by a separate vote.

J.1. Receive a presentation from the Novato Police Department regarding electric mobility devices and provide direction to staff on next steps

Staff contact: Jim Naugle, Chief of Police, 897-4361

[Staff Report - Electric Mobility Devices](#)

[Added 1/22/24: Revised Staff Report - Electric Mobility Devices](#)

[Attachment 1 - Novato Police Department Public Information Flyer - E-Bike Safety](#)

[Attachment 2 - City of Novato Municipal Code 18-9](#)

[Attachment 3 - Assembly Bill 1778](#)

[Attachment 4 - Mill Valley Municipal Code 10.30
Presentation](#)

J.2. Provide initial direction on the development of the Fiscal Year (FY) 2024/25 operating budget

Staff contact: Amy Cunningham, Interim City Manager, 899-8900

[Staff Report - Initial Budget Direction](#)

[Attachment 1 - Strategic Plan 2023-2025](#)

K. COMMISSIONS, COMMITTEES AND BOARDS (CCB'S) APPOINTMENTS

This section is used by the City Council to make appointments to fill vacancy/vacancies on their Commissions, Committees and Boards.

L. WORK STUDY SESSION

M. ADJOURNMENT

If urgent matters arise after the publication of the regular agenda, there will be an addendum. It will be posted at the referenced locations mentioned in the Affidavit of Posting by Friday at 5:00 p.m., the week before the meeting. Materials that are submitted to members of the City Council after the distribution of the agenda packet will be made available to the public at the time it is provided to the City Council.

AFFIDAVIT OF POSTING

I, Laura McDowall, certify that on the Thursday before the Council meeting of January 23, 2024, the agenda was posted on the City Community Service Board at 922 Machin Ave in Novato, California and on the City's website at novato.org.

/Laura McDowall/

Laura McDowall, City Clerk



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